AGENCY IQ
By POLITICO

38TH ANNUAL FOOD LABEL CONFERENCE

# MAHA, the Administration and Food Policy

June 1, 2026

FIRST THINGS FIRST

# What is MAHA?

The Make America Healthy Again movement has coalesced around RFK Jr. and his health and food-focused priorities.



***The MAHA food agenda includes:***

- Reduce chronic diet-related disease, especially in children
- Reduce corporate influence by the food and ag sector
- Eliminate harmful chemicals and additives in the food supply (e.g., food dyes, pesticides)
- Encourage eating 'real food' over ultra-processed foods
- Reform nutritional guidelines (e.g., encourage saturated fat and animal protein, discourage added sugar and refined carbs)
- Pursue 'radical transparency' about what is in our food (e.g., food labeling, testing, premarket review)

FIRST THINGS FIRST

# MAHA and the Leadership Outlook

Marty Makary is out as FDA Commissioner, Kyle Diamantas is in, while Don Prater falls back into a familiar role in the Human Foods Program.

***Where things currently stand at FDA and the administration at-large:***

- Makary's departure was driven by a variety of leadership, management and policy controversies. The exit is another visible example of MAHA-supported leader being ousted, with RFK Jr. in an increasingly reduced position.

- Diamantas will likely only be an *acting* commissioner while the administration looks for a permanent replacement in the coming weeks. With timing complications however, Diamantas may be in the role for some time, likely through the end of the year.

- Prater will thus also likely remain acting deputy commissioner to lead the HFP for some time. Prater has worked at the FDA for more than 26 years, including in the past as acting director of the former CFSAN. The HFP will likely have a steady and stable position during the transition, and with potentially elevated importance.

# FDA'S TOPLINE PRIORITIES

Deliverables, guidances, and rulemakings on the horizon.

# FDA's priority deliverables

The 2026 HFP priority deliverables highlighted continuations of FDA work as well as newly planned initiatives.

### *Ongoing Initiatives*

- Phaseout of synthetic food dyes.
- GRAS proposed rule.
- Front of Package Nutrition Labeling rule.
- Updated infant formula nutrient standards.
- Post-market chemical assessments for phthalates, propylparaben, BHA, BHT, ADA.
- Closer to Zero action levels for cadmium and inorganic arsenic in baby and toddler foods.
- New guidance and processes to expedite approval of new natural color additives.
- Monitoring for PFAS, heavy metals, and other contaminants in food.
- Post-market chemical assessment framework.

### *New Initiatives*

- Expanded allergen labeling including for gluten containing foods.
- Voluntary guidelines for caffeine labeling.
- Test method development for microplastics in food.
- Industry guidelines to limit food advertising to children.
- Added sugar reduction strategy.
- Evaluation of Phase I sodium reduction targets.
- Regular traceability rule engagements and tabletop exercises with industry

### *Other Points of Interest*

- Recall modernization is revived, with less expansive goals than before.
- "Healthy" nutrient content claim definition may undergo revision.
- No commitment on timeline or output for a UPF definition.
- Scope of FOPNL rule remains an open question, subject to change.
- Shifting inspection strategy focused on oversight of imported food and state-level capacity for domestic coverage.



https://www.fda.gov/about-fda/human-foods-program/human-foods-program-2026-priority-deliverables

# Regulatory Actions and Rules on the Horizon

The FDA has a lot of planned or pending rules and regulatory actions on its plate this year.

| Action | Stage |
|---|---|
| Definition of Ultra-Processed Foods | Proposed |
| **Substances Generally Recognized as Safe** | Proposed |
| Food Standards of Identity Revocations | Final |
| **Action Levels for Cadmium in Processed Food Intended for Babies and Young Children** | Proposed |
| Rulemaking to Provide by Regulation that an Ingredient Is Not Excluded From the Dietary Supplement Definition | Proposed |
| Front of Package Nutrition Labeling Rule | Proposed/Final |
| **Use of Salt Substitutes in Standardized Foods** | Final |
| Amendments to Procedural Requirements for Food and Color Additive Petitions | Proposed |
| **Food Standards of Identity Modernization for Pasteurized Orange Juice** | Final |

# HFP Priority Guidance

The FDA's 2026 priority guidance agenda includes a mix of new, old, and reemerging topics of interest.

| Guidance Topic |
| --- |
| **Action Levels for Cadmium in Food Intended for Babies and Young Children** |
| Action Levels for Inorganic Arsenic in Food Intended for Babies and Young Children |
| Action Level for Opiate Alkaloids on Poppy Seeds |
| Food Colors Derived from Natural Sources: Fruit Juice and Vegetable Juice as Color Additives in Food |
| Hazard Analysis and Risk-Based Preventive Controls for Human Food; Chapter 12: Preventive Controls for Chemical Hazards |
| New Dietary Ingredient (NDI) Notifications and Related Issues: Identity and Safety Information About the NDI |
| Evaluation and Establishment of Safety of Low-Moisture Ready-to-Eat Foods Following Equipment Microbiological Contamination Event |
| **The Food Traceability Rule: Questions and Answers** |
| Hazard Analysis and Risk-Based Preventive Controls for Human Food: Chapter 10: Sanitation Program |
| The Accredited Third-Party Certification Program: Questions and Answers |
| Guide to Minimize Food Safety Hazards of Fresh-cut Produce |
| Compliance Policy Guide for Determining the Identity, Quality, and Purity of Olive Oil and Olive-Pomace Oil Products |
| Food Labeling for Online Grocery Shopping Platforms |
| **Protein Efficiency Ratio Rat Bioassay Studies to Demonstrate that New Infant Formula Supports Quality Factor of Sufficient Biological Quality of Protein** |

# UPCOMING AGENCY INITIATIVES

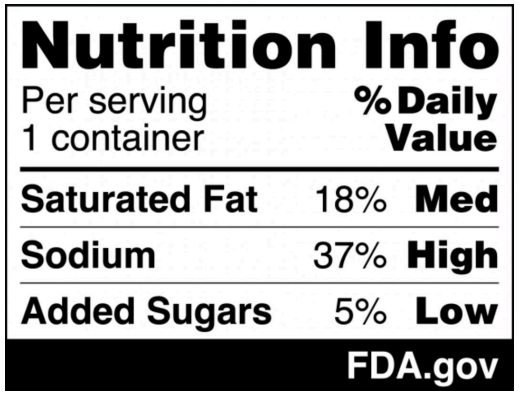
What to expect and watch out for from administration in the months ahead.

# Front of Package Nutrition Labeling

The highly anticipated rule from FDA could look substantially different from the version that was proposed.

## *Background*

In the final days of the Biden administration, FDA proposed a rule to require the display of interpretive nutrient information (added sugar, saturated fat, sodium) on the front of food packages, in the following format:




## *Recent Signs and Signals*

- FDA's 2026 deliverables said HFP will assimilate public comments and "prepare options" for leadership on the content of a final regulation.
- Kennedy has connected UPFs to the FOPNL rule, suggesting that some element of the definition could be incorporated.
- Kennedy has also suggested the use of a "traffic light" style interpretive labeling system.
- Makary also criticized the proposed FOPNL rule, saying that saturated fat should not be one of the three most critical label features.
- Diamantas indicated that FDA is evaluating whether to re-propose or finalize the rule, is weighing APA considerations.

## *What This All Means*

FDA's priority deliverables and comments by leadership suggest a significant departure from the proposed rule's FOP scheme.

Potential end of monochromatic labeling approach in favor of green / yellow / red color coding.

Shift away from focus on sat fat, added sugars, and sodium. Potential inclusion of nutrients to encourage (e.g., fiber)

Substantial changes raise the question about a new NPRM and timing to finalize a FOP regulation.

# Ultra-Processed Foods Definition

HHS and FDA leaders have teased that a proposed federal UPF definition is nearing publication.

### *Current Status*

The comment deadline on the UPF definition RFI closed October 2025. There are **over 5K comments** in the public docket, though FDA leadership has said that over 19K were received.

FDA's 2026 priority deliverables said that "HFP will continue to collaborate with USDA and other federal government partners **on gathering information, data and research, and analyzing comments** to the 2025 RFI to develop a federal government definition of UPFs."

HHS and FDA leadership **have vacillated** between saying the definition has been created and undergoing interagency review and saying that they are still reviewing and absorbing comments.

### *Themes from RFI Public Comments*

- There was strong disagreement over the role of the NOVA classification system in creating a UPF definition.
- Many groups across the spectrum emphasized the importance of including nutrient criteria in a UPF definition.
- There was an emphasis on basing a definition on information readily available on food labels (e.g., nutrition facts, ingredient lists).
- Requests for food category carveouts (dietary supplements, medical foods, infant formula, fresh produce) from a UPF definition.
- Strong reservations by some groups about issuing a definition at all, and the unintended consequences on dietary behavior.

# The GRAS proposed rule

Hints about FDA's highly anticipated GRAS rule point to scaled down reform of the current framework

### *Where the rule is currently*

The GRAS proposal remains **under review at OIRA since Dec. 1**. A significant number of groups have met with the agency to influence review including: ACC, ABA, CSPI, CHPA, Food is Medicine Institute, NGFA, Healthy Food America, PLASTICS, IFAC.

### *What groups are saying*

Many groups are focused on the **limitations of FDA's legal authority**, the idea of **establishing a registry** for self-affirmed GRAS substances, limiting the scope of the rule to only forward-looking submissions, concerns regarding **agency resource constraints** to oversee mandatory industry reporting, and various economic burdens.

### *What options close the GRAS "loophole"*

HHS/FDA leadership have consistently said that they will "close the GRAS loophole" and will need to claim that as a policy win. An inventory notification to FDA of a self-affirmed determination could qualify, as could a full GRAS submission requirement for FDA pre-market review. A rule that is just forward-looking or also retrospective, could claim to close the loophole.

# The latest on color additives

FDA has taken steps to encourage industry to speed its transition away from synthetic dyes as it nears the end of 2026 phaseout deadline.

### *Labeling Flexibilities*

FDA's new enforcement discretion policy allows firms to use the following voluntary claims if their food does not contain any FD&C colors:

- **"Made without artificial food colors / colorings,"**
- **"No artificial color / colors / coloring"**
- **"No added artificial color / colors / coloring,"**

### *Natural Dye Approvals*

FDA approved beetroot red, a new color option, and spirulina extract, for expanded uses in food. These CAPs were in FDA's review pipeline since 2023 and 2024, bringing FDA's recent color additive approvals up to six.

FDA also issued a letter to the color additives industry reminding them of the regulations for purity, quality, and identity required for color additives exempt from batch certification. It emphasized the need to limit heavy metals, solvent residues, and microbial contaminants.

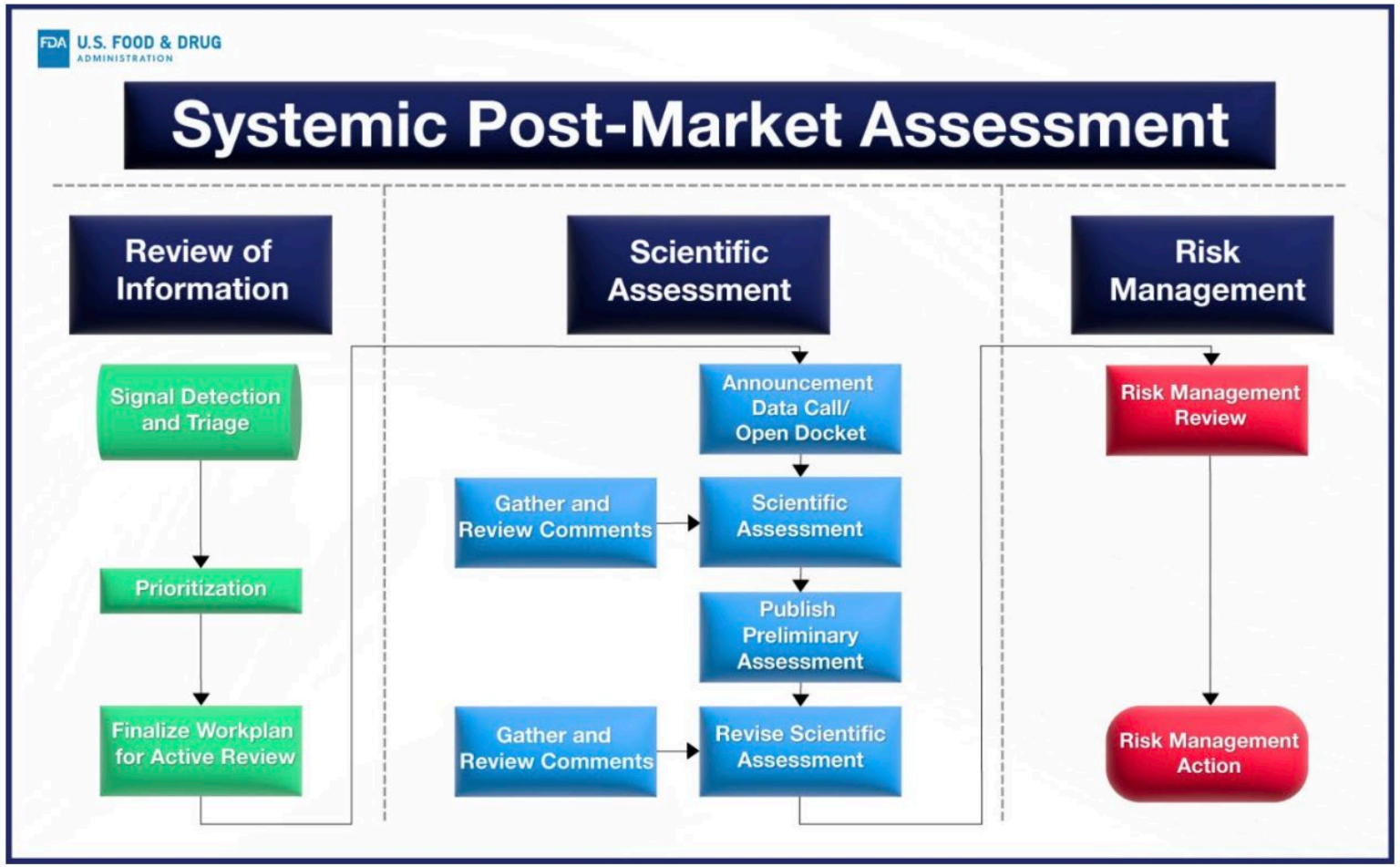
### *What's Next*

FDA only has only two remaining CAPs to review, to expand uses for soy leghemoglobin in plant-based meats and jagua (genipin-glycine) blue in pet food. No new CAPs have been submitted since the synthetic dye phaseout began.

FDA may consider tightening impurity limits across already-approved natural food colors. It has also signaled it wants to develop a new compliance system to test naturally derived food colors for elemental contaminants.

# FDA's postmarket chemical activities

FDA finalized a post-market food chemical assessment framework and is moving more substances into the review pipeline.




## *Outlook for Postmarket Review*

BHA, BHT, and ADA have been identified as the next high priority targets for assessment. FDA has issued RFIs to gather data and information to inform reviews for all three.

The establishment of the new postmarket framework will lead to a more formalized annual workplan for upcoming chemical reviews.

Self-affirmed GRAS substances will likely play a larger role in FDA's prioritization process if the agency requires retrospective reporting

The agency will ultimately be constrained by staffing and resource capacities to initiate and complete more assessments, however.

# Infant Formula Testing

HHS and FDA leaders have issued comprehensive testing results of contaminants in infant formula.

### *FDA Findings*

FDA tested 312 formula samples across 16 brands between 2023 and 2025. The agency found that the overwhelming majority of samples had undetectable or very low levels of contaminants,

FDA generated more than 120,000 data points testing for arsenic, lead, cadmium and mercury; 318 pesticides; 30 PFAS; 21 phthalates; one non-phthalate plasticizer.

### *Outlook*

- The agency plans to keep sampling products and publishing results, including for new entrants to the U.S. market. FDA may be using the testing to encourage companies to reduce contaminant levels voluntarily.
- FDA has also expressed interested in expanding its Closer to Zero initiative to develop action levels for heavy metals in formula. This would likely be a time and resource intensive process.
- FDA is also expected to continue advancing other pieces of Operation Stork Speed, particularly modernization of formula nutrient requirements. This means nutrient and contaminant policies are likely to evolve in parallel.

# Dietary Guidelines Implementation

Regulators have said they will move quickly to apply the DGAs across federal nutrition and procurement programs

### *Status of the DGAs*

HHS and the USDA released the 2025-2030 DGAs in early January, establishing federal nutrition recommendations for the next five years. The guidelines inform **federal nutrition standards** and **food procurement** decisions across the federal government.

The new DGAs place emphasis on whole, nutrient-dense foods, animal protein sources, saturated fat, dairy, and minimally processed items, while warning against consumption of ultra-processed foods and added sugars.

### *Impacts to Federal Programs*

- Food procurement for the military, VA hospitals, and federal prisons.
- USDA's nutrition standards for school meals
- USDA's Special Supplemental Nutrition Program for Women, Infants, and Children
- USDA's nutrition program standards for older Americans
- FDA's definition of the "healthy" nutrient content claim

### *What to Expect Next*

USDA's **biggest priority is its school meal standards** and has indicated it is working toward a rule to align with the new DGAs.

If USDA meaningfully tightens added sugar thresholds, restricts certain UPFs, or alters procurement standards, the effects would be nationwide and come with significant costs and compliance challenges.

FDA will assess whether to make **changes to the "healthy" claim** to align with the DGAs. This could lead to changes to saturated fat or food group requirements for animal protein.

OH, SNAP!

# USDA's Approved SNAP Restriction Waivers

23 states (so far) have approved SNAP waivers, with implementation dates effective in 10.

| State | Target Date | Restricted Products |
|---|---|---|
| Arkansas | 07/01/26 | Soda, fruit and vegetable drinks with less than 50% natural juice, unhealthy drinks, candy. |
| Colorado | 10/30/26 | Soft drinks. |
| **Florida** | **04/20/26** | **Soda, energy drinks, candy, prepared desserts.** |
| Hawaii | 08/01/26 | Soft drinks. |
| **Idaho** | **02/15/26** | **Soda, candy.** |
| Indiana | **01/01/26** | Soft drinks, candy. |
| **Iowa** | **01/01/26** | **All taxable food items as defined by the Department of Revenue (i.e., soft drinks, candy).** |
| Kansas | 02/15/27 | Soft drinks, candy. |
| **Louisiana** | **02/18/26** | **Soft drinks, energy drinks, candy.** |
| Missouri | 10/01/26 | Candy, energy drinks, certain unhealthy beverages. |
| Montana | 09/30/2026 | Sugary beverages, energy drinks, prepared desserts. |
| **Nebraska** | **01/01/26** | **Soda and soft drinks, energy drinks.** |

| State | Target Date | Restricted Products |
|---|---|---|
| Nevada | 02/01/28 | Sugar sweetened beverages, candy. |
| North Dakota | 09/01/26 | Soft drinks, energy drinks, candy. |
| Ohio | 10/01/26 | Sugar sweetened beverages. |
| **Oklahoma** | **02/15/26** | **Soft drinks, candy.** |
| South Carolina | 08/31/26 | Soft drinks, energy drinks, sweetened beverages, candy. |
| Tennessee | 07/31/26 | Processed foods that list certain sugars as first ingredient. Beverages that list carbonated water and certain sugars as the first two ingredients. |
| **Texas** | **04/01/26** | **Sweetened drinks, candy.** |
| **Utah** | **01/01/26** | **Soft drinks.** |
| Virginia | 10/01/26 | Sweetened beverages. |
| **West Virginia** | **01/01/26** | **Soda** |
| Wyoming | 02/01/27 | Sweetened, carbonated beverages |

OH, SNAP!

# Waiver Implementation Challenges

USDA plans to roll out SNAP enforcement as a legal challenge aims to invalidate the waivers.

## *Upcoming FNS enforcement*

USDA's compliance memo to food retailers says that **90 days after the implementation** date of a state waiver, FNS investigators will conduct monitoring and test-purchase waiver restricted items. That 90-day period grace period has now ended for multiple states.

In cases of documented noncompliance, FNS will issue a warning letter to retailers and give **30 days for corrective action**. If investigators find continued evidence of non-compliance, the retailer will be subject to an involuntary withdrawal of its SNAP authorization.

## *Litigation against USDA*

A group of SNAP recipients have sued the USDA over restrictions prohibiting them from using their benefits to purchase soda, candy, energy drinks, and other processed foods. The case focuses on deficiencies in the way USDA authorized the waivers and the demonstrated harms impacting SNAP recipients.

The plaintiffs ask the court to declare that USDA's approval of all 22 state waivers is unlawful, block implementation and enforcement of waivers in effect, and do the same for any waivers not yet implemented.

## *What's next*

Blocking the waivers would likely cause more confusion for retailers and consumers. Stores have already invested significant resources to retrain staff, establish new processes to identify restricted products, and implement point of sale restrictions.

If legal action succeeds, USDA could be incentivized to implement food restriction purchases nationally via regulation. It would also increase pressure on Congress to pursue reforms to SNAP eligible foods.

# FINAL THOUGHTS

# Food Policy: What Else We're Watching

Other recent regulatory and policy signals from the agency of things to come

## *Allergen Policy*

- Recent dockets across gluten, food allergy treatment, and food allergen thresholds
- Gluten RFI drew ~6,000 stakeholder comments
- Focus on cross-contact, thresholds, labeling, and regulatory application of allergen data
- FDA building scientific and policy foundation for future allergen policy decisions

## *Food Traceability*

- The compliance date for the Food Traceability Rule was extended to July 20, 2028.
- FDA is engaging regularly with industry on implementation and traceability rule flexibilities.
- The long-awaited Q&A draft guidance on the traceability rule was issued, with the comment period recently closing.

## *Added Sugar Reduction Strategy*

- Voluntary industry-focused sugar reduction framework (modeled on sodium targets)
- Exploration of a new "low added sugar" nutrient content claim
- Potential ingredient and menu labeling requirements
- Review of labeling for sugar alternatives and non-nutritive sweeteners
- Targeted consumer education efforts with federal partners

## *Food Safety Inspections*

- FDA launching BRIDGE to modernize food safety inspection model
- Expands use of state partners for routine inspections
- Shifts FDA focus to high-risk, complex, and international oversight
- Emphasizes data sharing, risk-based planning, and reduced duplication
- "Proof of process" underway in 2026 with phased national rollout

CHECKS AND BALANCES – BUT MOSTLY THE CHECKS

# The FY 2027 Ag-FDA Funding Package

House committee appropriators have passed their funding bill for the FDA, providing $7.1 billion for the FDA, with the HFP receiving $1.28 billion. The package is awaiting a full vote by the House, and includes:

- Restrictions on new population-wide sodium reduction actions until the release of the 2025-26 NHANES What We Eat in America Survey.
- Restrictions on any new actions applicable to food manufacturers of low risk ready-to-eat (RTE) foods for *Listeria monocytogenes*.
- Continued delay of the food traceability rule to July 20, 2028. Mandating public quarterly engagements. Assessment of the agency's foodborne illness traceback investigation process.
- Continued work to identify **traceability rule flexibilities** for lot-level tracking requirements including allowing for use of traceability lot code ranges included in a shipment. Clarification of transformation activities in warehouse and distribution environments.
- Preemption on requirements for **animal food labeling** and directives to establish new ingredient regulations and guidance for pet food.
- Directive to establish an **action level for opiate alkaloids** and carry out regulatory and enforcement measures.
- Directive to issue a report on the current status and progress on phasing out **synthetic food dyes**.
- Directive to issue another report on the need for additional **infant formula testing** for various contaminants and pathogens.

MY GROWN UP CHRISTMAS LIST

# FDA's *extensive* wish list for Congress

The agency's FY 27 budget request included **27 legislative proposals** for lawmakers to consider – compared to *six* in last year's document. Of the 27 proposals, **five** intersect with food.

**Expanded authority to regulate contaminants in critical and conventional foods**

**Mandatory post-market chemical data submissions and safety assessments by industry**

**Destruction authority for imported products that present a significant risk to public health**

**Biennial registration fees for all foreign human and animal food facilities**

**Authority to share food safety information with state, local, tribal, and territorial authorities**

A FEW THOUGHTS TO LEAVE YOU WITH

# Other thoughts on the months ahead

It has been a turbulent year for the FDA, with staff turnover, evolving priorities, and some signs of continuity – but what's likely to come in the latter half of 2026?

### *Expect the Unexpected*

HHS and FDA leadership have made it common practice to announce big policy changes without the formality of rulemaking or guidance. While FDA has its guidance and regulatory agendas, regulatory professionals should expect actions from the agency that emerge outside those frameworks.

### *Leadership (In)stability*

High profile leadership departures have been the norm across FDA over the past year. Thus far, this turbulence has largely spared the Human Foods Program, whose leadership remains comparatively stable. Much could change with the next FDA commissioner and the leaders they bring into the agency with them.

### *MAHA vs. the Midterms*

MAHA leaders have emphasized the movement's role in President Donald Trump's electoral victory and advised the administration to embrace MAHA if they want to win the midterm elections. At the same time, the administration is under increasing pressures to address affordability and avoid burdening the food and ag sectors, leading to a growing schism with the movement.

### *Measuring Success*

FDA has committed to ambitious plans including the voluntary synthetic food dye phaseout, operation stork speed for infant formula, reforming GRAS, and accelerating post-market chemical reviews. Expect the agency to be looking at ways heading into the midterm election to mark success and shore up MAHA support.

THANKS FOR ATTENDING

# Time for your questions



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